Supreme Court, U.S.
FILED
JAN 18 2000
CLERK

No. 99-391

IN THE

# Supreme Court of the United States

ROBIN FREE and RENEE FREE,

*Petitioners,*

*v.*

ABBOTT LABORATORIES, *et al.*,

*Respondents.*

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

## JOINT APPENDIX

FRANK CICERO, JR.*
KIRKLAND & ELLIS
*Attorneys for Respondent Abbott Laboratories*
200 East Randolph Drive
Chicago, IL 60601
(312) 861-3400

MAX R. SHULMAN*
CRAVATH, SWAINE & MOORE
*Attorneys for Respondents Bristol-Meyers Squibb Co., Inc. and Mead Johnson & Co.*
825 Eighth Avenue
New York, NY 10019
(212) 474-1000

MICHAEL D. HAUSFELD*
DANIEL A. SMALL
MATTHEW F. PAWA
CHARLES E. TOMPKINS
COHEN, MILSTEIN, HAUSFELD & TOLL, P.L.L.C.
*Attorneys for Petitioners*
1100 New York Avenue, N.W.
Suite 500 - West Tower
Washington, DC 20005
(202) 408-4600

* *Counsel of Record*

PETITION FOR CERTIORARI FILED SEPTEMBER 1, 1999
CERTIORARI GRANTED NOVEMBER 29, 1999

76 pp

## TABLE OF APPENDICES


| | Page |
|---|---|
| Appendix A — Relevant Docket Entries Of The United States District Court For The Middle District Of Louisiana | 1a |
| Appendix B — Relevant Docket Entries Of The United States Court Of Appeals For The Fifth Circuit | 25a |
| Appendix C — Petition Dated And Filed October 14, 1993 | 39a |
| Appendix D — Answer Of Abbott Laboratories Dated April 25, 1995 | 52a |
| Appendix E — Answer Of Defendants Bristol-Myers Squibb Company And Mead Johnson & Company Dated April 26, 1995 | 61a |

The following opinions, findings of fact, conclusions of law, decrees and orders have been omitted in printing this joint appendix because they appear in the appendix of the Petition for a Writ of Certiorari on the following pages:

*Page*

Opinion Of The United States Court Of Appeals For The Fifth Circuit Dated June 3, 1999 ..... 1a

Order Of The Supreme Court Of Louisiana Dated March 19, 1999 ..... 9a

Opinion Of The United States Court Of Appeals For The Fifth Circuit Dated January 19, 1999 ..... 10a

Ruling Of The United States District Court For The Middle District Of Louisiana On Motions To Dismiss Or In The Alternative For Summary Judgment Dated November 6, 1997 .. 26a

Judgment Of The United States District Court For The Middle District Of Louisiana Dated And Filed November 7, 1997 ..... 45a

Ruling Of The United States District Court For The Middle District Of Louisiana On Motion For Reconsideration Dated And Filed April 22, 1997 ..... 46a

Ruling Of The United States District Court For The Middle District Of Louisiana On Motion For Final Approval Of Settlements And Attorney Fees Dated January 21, 1997 ..... 54a



Order Of The United States District Court For The Middle District Of Louisiana Preliminarily Approving Partial Settlement, Setting Hearing, And Directing Notice To The Class Dated And Filed May 31, 1996 ..... 66a

Opinion Of The United States Court Of Appeals For The Fifth Circuit Dated September 21, 1995 ... 74a

Opinion Of The United States Court Of Appeals For The Fifth Circuit Dated April 24, 1995 ..... 76a

Opinion Of The United States District Court For The Middle District Of Louisiana Dated And Filed June 21, 1994 ..... 92a

Opinion Of The United States District Court For The Middle District Of Louisiana Dated, Decided And Filed April 5, 1994 ..... 98a

Relevant Statutes ..... 106a

The following opinions, findings of fact, conclusions of law, decrees and orders have been omitted in printing this joint appendix because they appear in the appendix of the Respondents' Brief in Opposition to the Petition for a Writ of Certiorari on the following pages:

*Page*

*Lauderdale v. Abbott Labs.*, Civil Action No. 94-0659-B-C (S.D. Ala. April 4, 1995) ..... 1a

*Lambert v. Abbott Labs.*, Civil Action No. 94-0677-L(J) (W.D. Ky. May 23, 1995) ..... 7a

*DeVincenzi v. Abbott Labs.*, CV-S-94-527LDG (RJJ) (D. Nev. Nov. 16, 1994) ..... 16a

*Buscher v. Abbott Labs.*, Civil Action No. 2:94-0422 (S.D. W.Va. Sept. 26, 1994) ..... 22a

*Carlson v. Abbott Labs.*, Case No. 94-C-378 (E.D. Wis. July 21, 1994) ..... 24a

*Heilman v. Abbott Labs.*, A1-94-122 (D.N.D. April 17, 1995) ..... 30a

*Boos v. Abbott Labs.*, Civil Action No. 95-10091-NG (D. Mass. Aug. 18, 1995) ..... 32a

Interstate Class Action Jurisdiction Act of 1999, H.R. 1875, 106th Cong. (1999) ..... 44a

Class Action Fairness Act of 1999, S. 353, 106th Cong. (1999) ..... 52a



## APPENDIX A — RELEVANT DOCKET ENTRIES OF THE UNITED STATES DISTRICT COURT FOR THE MIDDLE DISTRICT OF LOUISIANA

U.S. District Court
Middle District of Louisiana (Baton Rouge)

CIVIL DOCKET FOR CASE #: 93-CV-971

Free, et al v. Abbott Laboratories, et al
Filed: 11/16/93
Assigned to: Judge John V. Parker
Jury demand: Defendant
Demand: $50,000
Nature of Suit: 410
Lead Docket: None
Jurisdiction: Federal Question
Dkt # in 18th JDC, WDLA : is 25428 D

Cause: 28:1331 Fed. Question: Anti-trust

ROBIN FREE
plaintiff

Patrick Wayne Pendley
[COR LD NTC]
P. O. Drawer 71
58005 Meriam Street
Plaquemine, LA 70765-0071
22075
225-687-6396
FTS 687-6396

*Appendix A*

RENEE FREE
plaintiff

Patrick Wayne Pendley
(See above)
[COR LD NTC]

v.

ABBOTT LABORATORIES, INC.
defendant

William R. D'Armond
[COR LD NTC]
James P. Doré
[COR]
Kean, Miller, Hawthorne,
D'Armond, McCowan & Jarman
P. O. Box 3513
Baton Rouge, LA 70821-3513
22033
225-387-0999
FTS 388-9133

John M. Landis
[COR]
Phillip A. Wittmann
[COR LD NTC]
Edwin H. Neill, III
[COR]
Stone, Pigman, Walther,
Wittmann & Hutchinson



*Appendix A*

546 Carondelet St.
New Orleans, LA 70130-3588
22071
504-581-3200
FTS 581-3361

James Andrew Langan
[COR]
Frank Cicero, Jr.
[COR]
Kirkland & Ellis
200 East Randolph Drive
Chicago, IL 60601
MDL
312-861-2000

BRISTOL-MEYERS SQUIBB COMPANY, INC.
defendant

John M. Landis
(See above)
[COR]
Phillip A. Wittmann
(See above)
[COR LD NTC]
Edwin H. Neill, III
(See above)
[COR]

Douglas D. Broadwater
[COR]
Max R. Shulman
[COR]

*Appendix A*

Cravath, Swaine & Moore
825 Eighth Avenue
New York, NY 10019
88888
212-474-1000

MEAD JOHNSON & CO.
defendant

John M. Landis
(See above)
[COR]
Phillip A. Wittmann
(See above)
[COR LD NTC]
Edwin H. Neill, III
(See above)
[COR]

Douglas D. Broadwater
(See above)
[COR]
Max R. Shulman
(See above)
[COR]

11/16/93 1 NOTICE OF REMOVAL; FILING FEE $ 120.00 RECEIPT # 53964 (bm)

11/16/93 — Set magistrate assignment. (bm)

11/16/93 2 MOTION by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. to Extend Time to Plead (bm)



*Appendix A*

11/17/93 3 ORDER granting [2-1] motion to Extend Time to Plead, reset Answer deadline to 12/21/93 for Mead Johnson & Co., for Bristol-Meyers Squib, for Abbott Laboratories (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (bm)

11/18/93 4 ORDER, set Status Report deadline to 2/14/94, set Status Conference for 11:00 3/3/94 before SCR (signed by MAG1 CRD), issued notices. (bm)

11/30/93 5 MOTION by Robin Free, Renee Free to Remand (Motion Hearing set for 10:00 1/7/94 before JVP) (ph)

11/30/93 6 MEMORANDUM by Robin Free, Renee Free in support of [5-1] motion to Remand by Renee Free, Robin Free (ph)

12/7/93 7 MOTION by Abbott Laboratories for James Andrew Langan and Frank Cicero, Jr to Appear Pro Hac Vice (bm) [Entry date 12/08/93]

12/8/93 8 ORDER granting [7-1] motion for James Andrew Langan and Frank Cicero, Jr to Appear Pro Hac Vice (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (bm)

12/13/93 9 MOTION by Robin Free, Renee Free for Permission to Substitute Brief in Support of Motion to Remand (bm)

*Appendix A*

| | | |
|---|---|---|
| 12/13/93 | 10 | MEMORANDUM by Robin Free, Renee Free in support of [9-1] motion for Permission to Substitute Brief by Renee Free, Robin Free (bm) |
| 12/14/93 | 11 | ORDER granting [9-1] motion for Permission to Substitute Brief (Brief attached to mtn to substitute) (signed by Chief Judge John V. Parker), issued notices. (pa) |
| 12/16/93 | 12 | MOTION by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. to Continue Hearing on pltfs' motion to remand presently set for 1/7/93, and set Briefing Schedule (bm) [Entry date 12/17/93] |
| 12/16/93 | 13 | MOTION by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. to Extend Time to File Responsive Pleadings (bm) [Entry date 12/17/93] |
| 12/17/93 | 14 | ORDER granting [12-1] motion to Continue Hearing, Motion Hearing set for 10:00 1/21/94 for [5-1] motion to Remand (signed by Chief Judge John V. Parker), issued notices. (bm) [Entry date 12/20/93] |
| 12/17/93 | 15 | ORDER granting [13-1] motion to Extend Time to File Responsive Pleadings, Response to Motion reset to 1/14/94 for [5-1] motion to Remand (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (bm) [Entry date 12/20/93] |



*Appendix A*

| | | |
|---|---|---|
| 12/22/93 | 16 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. for Douglas Broadwater and Max Shulman to Appear Pro Hac Vice (rg) [Entry date 12/23/93] |
| 12/23/93 | 17 | ORDER granting [16-1] motion for Douglas Broadwater and Max Shulman to Appear Pro Hac Vice (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (rg) [Entry date 12/27/93] |
| 1/14/94 | 18 | MEMORANDUM by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. in opposition to [5-1] motion to Remand by Renee Free, Robin Free (bm) [Entry date 01/18/94] |
| 1/24/94 | 19 | Minute entry (Dated 1/21/94): . . . matter came for oral argument . . . [5-1] motion to Remand under advisement (signed by Chief Judge John V. Parker), issued notices (bm) |
| 2/14/94 | 20 | NINETY DAY STATUS REPORT by Robin Free, Renee Free, Abbott Laboratories (bm) [Entry date 05/10/94] |
| 3/4/94 | 21 | ORDER, terminated deadline for status conf previously set for 3/3/94, subject to reassignment if case is not remanded (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (bm) [Entry date 05/10/94] |

| | | |
|---|---|---|
| 4/5/94 | 22 | RULING granting [5-1] motion to Remand and this action will be remanded to the 18th JDC for the Parish of West Baton Rouge, LA (signed by Chief Judge John V. Parker), issued notices. (bm) [Entry date 04/06/94] [Edit date 04/28/94] |
| 4/6/94 | 23 | ORDER, Remanding Action to the 18th JDC for the Parish of West Baton Rouge, LA (signed by Chief Judge John V. Parker), issued notices. (bm) [Entry date 04/07/94] [Edit date 04/28/94] |
| 4/6/94 | — | Case closed (bm) [Entry date 04/11/94] |
| 4/20/94 | 24 | MOTION by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. for Reconsideration of [22-1] ruling order (Motion Hearing set for 10:00 6/3/94) (bm) [Entry date 04/21/94] [Edit date 04/28/94] |
| 4/20/94 | 25 | MEMORANDUM by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. in support of [23-1] motion for Reconsideration of [22-1] ruling order by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (bm) [Entry date 04/21/94] [Edit date 04/28/94] |
| 5/6/94 | 26 | NOTICE OF APPEAL by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co.. FILING FEE $ 105.00 RECEIPT # 54972 |



| | | |
|---|---|---|
| | | Appeal record due on 6/6/94 appealing order remanding action to the 18th JDC filed on 4/7/94 . . . copies mailed to Pendley, D'Armond and USCA (bm) [Entry date 05/09/94] [Edit date 05/10/94] |
| 5/6/94 | — | USCA appeal fees received FILING FEE $ 105.00 RECEIPT # 54972 by Abbott Laboratories, Bristol Myers Squibb and Mead Johnson (bm) [Entry date 05/09/94] [Edit date 05/09/94] |
| 5/6/94 | — | USCA Case Number Re: [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories USCA NUMBER: 94-30279 (qca) [Entry date 08/19/94] |
| 5/9/94 | — | Notice of Appeal and certified copy of docket to USCA: [25-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (bm) |
| 5/11/94 | 27 | MEMORANDUM by Robin Free, Renee Free in opposition to [24-1] motion for Reconsideration of [22-1] ruling order by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (rg) |
| 5/20/94 | — | Transmitted Supplemental Record on Appeal: [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories dkt #27 14 pages (bm) |

*Appendix A*

| | | |
|---|---|---|
| 5/23/94 | 28 | MOTION by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. for Leave to File reply memo in support of their motion for reconsideration (bm) [Entry date 05/24/94] |
| 5/24/94 | — | HOLDING REPLY MEMO FOR LEAVE TO FILE RE #28 (bm) |
| 5/24/94 | 29 | ORDER granting [28-1] motion for Leave to File reply memo (in support of their motion for reconsideration signed by Chief Judge John V. Parker), issued notices. (bm) |
| 5/24/94 | 30 | REPLY MEMORANDUM by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. in support of [24-1] motion for Reconsideration of [22-1] ruling order by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (bm) |
| 6/21/94 | 31 | RULING denying [24-1] motion for Reconsideration of [22-1] ruling order (signed by Chief Judge John V. Parker), issued notices. (bm) |
| 6/28/94 | 32 | Subsequent NOTICE OF APPEAL by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co.; re: [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (qca) [Entry date 06/29/94] |



*Appendix A*

| | | |
|---|---|---|
| 6/29/94 | — | Notice of Appeal and certified copy of docket to USCA: [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (amendment to notice of appeal sent 6/29/94) (rg) |
| 7/12/94 | — | Transmitted Supplemental Record on Appeal: [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories documents 28 – 32 (bm) [Edit date 07/12/94] |
| 4/25/95 | 33 | ANSWER to Complaint by Abbott Laboratories (sh) [Entry date 04/26/95] |
| 4/26/95 | 34 | ANSWER to Complaint by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. (Attorney Phillip A. Wittmann, John M. Landis, Edwin H. Neill III), (sh) [Entry date 04/27/95] |
| 4/27/95 | 35 | ORDER/Opinion . . . USCA . . . petition for mandamus is denied ( ), issued notices. (sh) [Entry date 04/28/95] |
| 9/13/95 | 36 | MANDATE OF USCA (certified copy) Re: the remand order of the district court in this cause is vacated and the cause is remanded to the district court for further proceedings in accordance with the opinion of this court . . . each pty bear its own costs on appeal [26-1] appeal by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories (sh) |

| | | |
|---|---|---|
| 9/13/95 | — | Record on Appeal returned from U.S. Court of Appeals: [26-1] appeal (sh) |
| 9/13/95 | — | Case reopened (sh) |
| 9/13/95 | — | Set magistrate assignment. (sh) |
| 11/15/95 | 37 | NOTICE of Hearing: set Status Conference for 3:00 12/21/95 CRD PS, issued notices. (sh) |
| 12/21/95 | — | Status Conference held (sh) [Entry date 01/05/96] |
| 1/5/96 | 38 | SCHEDULING ORDER setting Motion Filing deadline on 2/23/96 for dfts to file a mot for S/J on the issue of standing . . . this matter will be reviewed in approximately 60 days and will be assigned for stat cnf if a mot for S/J has not been filed (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (sh) |
| 2/22/96 | 39 | ORDER the scheduling order deadline for filing dispositive mots be suspended as to dft Abbott Lab . . . this matter will be reviewed in about 90 days (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (sh) |
| 2/23/96 | 40 | LETTER to SCR from William D'Armond re: continuance of dispositive mot deadline (sh) |



| | | |
|---|---|---|
| 2/23/96 | 41 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. to Dismiss (Motion Hearing set for 10:00 4/5/96) (sh) [Entry date 02/26/96] |
| 2/23/96 | 41 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. for Summary Judgment (Motion Hearing set for 10:00 4/5/96) (sh) [Entry date 02/26/96] |
| 2/23/96 | 42 | MEMORANDUM by Bristol-Meyers Squib, Mead Johnson & Co. in support of [41-1] motion for Summary Judgment by Mead Johnson & Co., Bristol-Meyers Squib, [41-1] motion to Dismiss by Mead Johnson & Co., Bristol-Meyers Squib (sh) [Entry date 02/26/96] |
| 2/23/96 | 43 | EXHIBIT(S) to memo in support of mot to dismiss or for S/J by Britol Meyers and Mead Johnson (sh) [Entry date 02/26/96] |
| 3/18/96 | 44 | MEMORANDUM by Robin Free, Renee Free in opposition to [41-1] motion for Summary Judgment by Mead Johnson & Co., Bristol-Meyers Squib, [41-1] motion to Dismiss by Mead Johnson & Co., Bristol-Meyers Squib (sh) |
| 3/18/96 | 45 | EXHIBIT(S) to pltfs memo in opp to dfts mot to dismiss or S/ (sh) |

*Appendix A*

| | | |
|---|---|---|
| 3/29/96 | 46 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. for Leave to File Reply Memo in support of motion to dismiss or for s/j (hj) |
| 3/29/96 | — | Holding Reply Memo in support of dfts' motion to dismiss or for s/j (hj) |
| 4/1/96 | 47 | MOTION by Robin Free, Renee Free for Leave to File supplemental memo in support of memo in opposition to defts motion to dismiss or in the alternative, for SJ (ph) |
| 4/1/96 | — | holding supplemental memo in support of memo in opposition to defts motion to dismiss or, in the alternative, for SJ (ph) |
| 4/1/96 | 48 | ORDER granting [47-1] motion for Leave to File supplemental memo in support of memo in opposition to defts motion to dismiss (signed by Chief Judge John V. Parker), issued notices. (ph) |
| 4/1/96 | 49 | MEMORANDUM by Robin Free, Renee Free in opposition to [41-1] motion for Summary Judgment by Mead Johnson & Co., Bristol-Meyers Squib, [41-1] motion to Dismiss by Mead Johnson & Co., Bristol-Meyers Squib (ph) |
| 4/1/96 | 50 | ORDER granting [46-1] motion for Leave to File Reply Memo in support of motion to dismiss or for s/j (signed by Chief Judge John V. Parker), issued notices. (ph) |



*Appendix A*

| | | |
|---|---|---|
| 4/1/96 | 51 | REPLY by Bristol-Meyers Squib to response to [41-1] motion for Summary Judgment by Mead Johnson & Co., Bristol-Meyers Squib, [41-1] motion to Dismiss by Mead Johnson & Co., Bristol-Meyers Squib (ph) |
| 5/8/96 | 52 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. for Leave to File Suppl Memo in Support of Mot to Dismiss (rg) |
| 5/9/96 | 53 | ORDER granting [52-1] motion for Leave to File Suppl Memo in Support of Mot to Dismiss (signed by Chief Judge John V. Parker), issued notices. (rg) |
| 5/9/96 | 54 | SUPPLEMENTAL MEMORANDUM by Bristol-Meyers Squib, Mead Johnson & Co. in support of [41-1] motion for Summary Judgment by Mead Johnson & Co., Bristol-Meyers Squib, [41-1] motion to Dismiss by Mead Johnson & Co., Bristol-Meyers Squib (rg) |
| 5/22/96 | 55 | MOTION by Robin Free, Renee Free for Leave to File second supplemental memo in support of original memo in opposition to defts motion to dismiss or in the alternative, for SJ (ph) |
| 5/22/96 | — | holding second supplemental memo in support of original memo in opposition to defts mot to dismiss or in the alternative for SJ (ph) |

*Appendix A*

5/22/96 56 ORDER granting [55-1] motion for Leave to File second supplemental memo in support of original memo in opposition to defts motion to dismiss or in the alternative, for SJ filed by pla (signed by Chief Judge John V. Parker), issued notices. (ph)

5/22/96 57 SECOND Supplemental MEMORANDUM by Robin Free, Renee Free in support of [49-1] of original opposition memorandum to defts motion to dismiss or in the alternative, for SJ by Renee Free, Robin Free (ph)

5/30/96 58 JOINT MOTION by Robin Free, Renee Free, Abbott Laboratories for order prelininarily approving partial settlement, setting Hearing, and directing notice to class (sh)

5/30/96 59 MEMORANDUM by Robin Free, Renee Free, Abbott Laboratories in support of [58-1] joint motion for order prelininarily approving partial settlement by Abbott Laboratories, Renee Free, Robin Free, [58-2] joint motion setting Hearing, and directing notice to class by Abbott Laboratories, Renee Free, Robin Free (sh)

5/31/96 60 ORDER granting jt mot of pltfs and Abbott Laboratories [58-1] joint motion for order prelininarily approving partial settlement (signed by Chief Judge John V. Parker), issued notices. (sh)



*Appendix A*

7/10/96 61 JOINT MOTION by Robin Free, Renee Free, Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. to Amend [60-1] order (sh) [Entry date 07/11/96]

7/12/96 62 PROPOSED ORDER granting [61-1] joint motion to Amend [60-1] order regarding the Bristol Settlement, that the date by which publication of notice of the settlement w/ Abbott Laboratories, Inc. must be accomplished is deferred pending further order of the court (signed by Chief Judge John V. Parker), issued notices. (sh)

9/3/96 63 ORDER this matter is referred to the Honorable SCR for the purpose of conducting a settlement cnf (signed by Chief Judge John V. Parker), issued notices. (sh)

9/6/96 64 JOINT MOTION by Robin Free, Renee Free, Bristol-Meyers Squib, Mead Johnson & Co. for order preliminarily approving partial settlement, setting hrg and directing notice to class (sh) [Edit date 02/12/98]

9/6/96 65 MEMORANDUM by Robin Free, Renee Free, in support of [64-1] joint motion for order preliminarily approving partial settlement, setting hrg and directing notice to class by Mead Johnson & Co., Bristol-Meyers Squib, Abbott Laboratories, Renee Free, Robin Free (sh) [Edit date 02/12/98]

*Appendix A*

9/6/96 66 ORDER granting [64-1] joint motion by plft's & dft's Bristo-Myers and Mead Johnson & Company (together "Bristol") for order preliminarily approving partial settlement, setting hrg and directing notice to class (signed by Chief Judge John V. Parker), issued notices. (sh) [Edit date 02/12/98]

9/6/96 — Status Conference held (sh) [Entry date 09/09/96]

9/9/96 67 STATUS Conference Report . . . cnsl presented a jt mot for preliminary approval of a settlement agreement as to the claims against Bristol-Meyres Squibb and Mead Johnson . . . if preliminary approval is obtained in this case and in cases pending in 14 other states, the parties will request that a date be fixed for a fairness hrg (signed by Mag. Judge Stephen C. Riedlinger), issued notices. (sh)

10/10/96 68 MOTION by Robin Free, Renee Free for Fairness Hearing (Motion Hearing set for 9:00 12/16/96) (sh) [Entry date 10/11/96]

10/11/96 69 ORDER granting all pltfs [68-1] motion for Fairness Hearing, set fairness Hearing for 12/16/96 at 9:00 a.m. at US Courthouse (signed by Chief Judge John V. Parker), issued notices. (sh) [Edit date 12/09/96]

12/9/96 70 MEMORANDUM by Robin Free, Renee Free in support of final approval of the settlements



*Appendix A*

with dfts Abbott, Bristol-Myers and Mead Johnson (dcap) [Entry date 12/10/96]

12/9/96 71 JOINT MOTION by Robin Free, Renee Free for Attorney Fees and Reimbursement of Expenses (kd) [Entry date 12/11/96]

12/9/96 72 EXHIBIT to Jt motion for Attorney Fees and Reimbursement of Expenses (kd) [Entry date 12/11/96]

12/16/96 73 LETTER . . . To: Clerk From: Karla M. Gluek Ref: Copy of Letter that relates to settlement procedures. (kd) [Entry date 12/17/96]

12/20/96 74 Minute entry: 12/16/96 Fairness hearing was held . . . [71-1] joint motion for Attorney Fees and Reimbursement of Expenses under advisement (signed by Chief Judge John V. Parker), issued notices (kd)

1/5/97 — USCA Case Number Re: [99-1] appeal by Renee Free, Robin Free USCA NUMBER: 97-31341 (hj) [Entry date 01/06/98]

1/13/97 75 LETTER . . . To: Mr. Hosto . . . From: Eric Olson Ref: Settlement of this class action. (kd) [Entry date 01/14/97]

1/21/97 76 RULING denying [71-1] joint motion for Attorney Fees and Reimbursement of Expenses . . . the court finds that the

proponents have failed to present sufficient info to allay the concerns of the court . . . Because the settlement is not approved, the court does not reach counsel's motion for attorney fees and reimburesement of expenses. (signed by Chief Judge John V. Parker), issued notices. (kd)

2/13/97 77 MOTION by Abbott Laboratories, Mead Johnson & Co. for Reconsideration of [76-1] ruling order (Motion Hearing set for 10:00 3/21/97) (kd) [Entry date 02/14/97]

2/13/97 78 MEMORANDUM by Abbott Laboratories, Mead Johnson & Co. in support of [77-1] motion for Reconsideration of [76-1] ruling order by Mead Johnson & Co., Abbott Laboratories (kd) [Entry date 02/14/97]

2/13/97 79 EXHIBIT(S) to Memo to in Support of Motion for Reconsideration (kd) [Entry date 02/14/97]

3/3/97 80 MOTION by Robin Free, Renee Free to Extend Time to respond to dft's motion for Reconsideration (kd)

3/3/97 81 ORDER granting [80-1] plft's motion to Extend Time to respond to dft's motion for Reconsideration, Response to Motion reset to 3/12/97 for [77-1] motion for Reconsideration of [76-1] ruling order (signed by Chief Judge John V. Parker), issued notices. (kd)



3/12/97 82 MEMORANDUM by Robin Free, Renee Free in support of [77-1] motion for Reconsideration of [76-1] ruling order by Mead Johnson & Co., Abbott Laboratories (kd) [Entry date 02/12/98]

4/22/97 83 TRANSCRIPT filed for dates of 12/16/96 of Settlement Hearing. (kd)

4/22/97 84 RULING denying [77-1] dft's motion for Reconsideration of [76-1] ruling order . . . All parties are hereby granted leave to submit additional affidavits, evidence and briefs on those motions within 30 days of the date of this ruling, after which the motions will be considered submitted. (signed by Chief Judge John V. Parker), issued notices. (kd)

5/16/97 85 MOTION by Abbott Laboratories to Dismiss, or in the alternative for Summary Judgment (Motion Hearing set for 10:00 7/18/97) (kd)

5/16/97 86 MEMORANDUM by Abbott Laboratories in support of [85-1] motion to Dismiss by Abbott Laboratories, [85-2] motion for Summary Judgment by Abbott Laboratories (kd)

5/16/97 87 Statement of Facts not in dispute by Abbott Laboratories. (kd) [Edit date 05/16/97]

5/16/97 88 MOTION by Abbott Laboratories to reset hearing on its motion to dismiss or in the alternative for SJ (kd)

*Appendix A*

| | | |
|---|---|---|
| 5/22/97 | 89 | MEMORANDUM by Robin Free, Renee Free in opposition to [85-1] motion to Dismiss by Abbott Laboratories, [85-2] motion for Summary Judgment by Abbott Laboratories (kd) |
| 5/22/97 | 90 | MEMORANDUM by Abbott Laboratories, Bristol-Meyers Squib, Mead Johnson & Co. in support of [85-1] motion to Dismiss by Abbott Laboratories, [85-2] motion for Summary Judgment by Abbott Laboratories (kd) |
| 9/10/97 | 91 | MOTION by Robin Free, Renee Free for Leave to File Supplemental Memo (kd) [Entry date 09/11/97] |
| 9/10/97 | — | Holding plft's supplemental memo in opp to dft's motion to dismiss or for SJ (kd) [Entry date 09/11/97] |
| 9/11/97 | 92 | ORDER granting [91-1] plft's motion for Leave to File Supplemental Memo (signed by Chief Judge John V. Parker), issued notices. (kd) |
| 9/11/97 | 93 | SUPPLEMENTAL MEMORANDUM by Robin Free, Renee Free in opposition to [85-1] motion to Dismiss by Abbott Laboratories, [85-2] motion for Summary Judgment by Abbott Laboratories (kd) |



*Appendix A*

| | | |
|---|---|---|
| 9/25/97 | 94 | MOTION by Bristol-Meyers Squib, Mead Johnson & Co. for Leave to File supplemental memo in support of mot to dismiss or for SJ (kd) |
| 9/25/97 | — | Holding supplemental memo in support of mot to dismiss or for SJ (kd) |
| 9/25/97 | 95 | ORDER granting [94-1] dft's motion for Leave to File supplemental memo in support of mot to dismiss or for SJ (signed by Chief Judge John V. Parker), issued notices. (kd) |
| 9/25/97 | 96 | SUPPLEMENTAL MEMORANDUM by Bristol-Meyers Squib in support of [85-1] motion to Dismiss by Abbott Laboratories, [85-2] motion for Summary Judgment by Abbott Laboratories (kd) [Edit date 09/25/97] |
| 11/6/97 | 97 | RULING granting [85-1] dft's motion to Dismiss and this action will be dimissed. (signed by Chief Judge John V. Parker), issued notices. (kd) |
| 11/7/97 | 98 | JUDGMENT . . . Dft's motion for DISMISSAL is hereby GRANTED, and this action is hereby DISMISSED. (signed by Chief Judge John V. Parker), issued notices. (kd) [Edit date 02/12/98] |
| 11/7/97 | — | Case closed (kd) |

*Appendix A*

11/19/97 99 NOTICE OF APPEAL by Robin Free, Renee Free . . . from the final judgment entered on 11/7/97. FILING FEE $ 105.00 RECEIPT # 62794 Appeal record due on 12/19/97 (hj) [Entry date 11/20/97]

12/17/97 — Notice of Appeal and certified copy of docket to USCA: [99-1] appeal by Renee Free, Robin Free (hj)

12/17/97 — Certified and transmitted Record on Appeal to U.S. Court of Appeals: [99-1] appeal by Renee Free, Robin Free (hj)

6/9/99 — Transmitted Supplemental Record on Appeal: [99-1] appeal by Renee Free, Robin Free (hcj)

6/30/99 100 MANDATE OF USCA (certified copy) Re: [99-1] appeal by Renee Free, Robin Free Decision of COA: Affirmed (hcj) [Entry date 07/01/99]

6/30/99 — Record on Appeal returned from U.S. Court of Appeals: [99-1] appeal (hcj) [Entry date 07/01/99]

12/1/99 — Record on Appeal returned from U.S. Court of Appeals: [99-1] appeal (hcj)

[END OF DOCKET: 3:93cv971]



## APPENDIX B — RELEVANT DOCKET ENTRIES OF THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

GENERAL DOCKET FOR
Fifth Circuit Court of Appeals

Court of Appeals Docket #: 97-31341
Filed: 12/29/97
Nsuit: 4190
Contract: Other
Free, et al v. Abbott Laboratories, et al
Appeal from: Middle District of Louisiana, Baton Rouge

Lower court information:

District: 053N-3 : 93-CV-971-A
Ordering Judge: John V Parker, US District Judge
Date Filed: 11/16/93
Date order/judgment: 11/7/97
Date NOA filed: 11/19/97

Fee status: Paid

Prior cases: None

Current cases: None

*Appendix B*

ROBIN FREE
Plaintiff – Appellant

Patrick W Pendley
FTS 687-6398
225-687-6396
[COR NTC ret]
58005 Meriam Street
Plaquemine, LA 70764

Daniel Adam Small
202-408-4600
[COR LD NTC ret]
Matthew F Pawa
FTS 408-4699
202-408-4600
[COR NTC ret]
Michael D Hausfeld
(202) 408-4600
[NTC ret]
Cohen, Milstein, Hausfeld & Toll
1100 New York Avenue, NW
Suite 500 West Tower
Washington, DC 20005

RENEE FREE
Plaintiff – Appellant

Patrick W Pendley
(See above)
[COR NTC ret]



*Appendix B*

Daniel Adam Small
(See above)
[COR LD NTC ret]
Matthew F Pawa
(See above)
[COR NTC ret]
Michael D Hausfeld
(See above)
[NTC ret]

v.

ABBOTT LABORATORIES, INC
Defendant – Appellee

William R D'Armond
FTS 225-388-9133
225-387-0999
22nd Floor
[COR NTC ret]
Kean, Miller, Hawthorne,
D'Armond, McCowan & Jarman
One American Place
Baton Rouge, LA 70825

Frank Brian Cicero, Jr
FTS 861-2200
(312) 861-2000
[COR LD NTC ret]
Kirkland & Ellis
200 E Randolph Drive
Chicago, IL 60601

*Appendix B*

John M Landis
FTS 581-3361
504-581-3200
[NTC ret]
Stone, Pigman, Walther,
Wittmann & Hutchinson
546 Carondelet Street
New Orleans, LA 70130

Craig A Knot
FTS 861-2200
312-861-2000
Suite 6000
[COR NTC ret]
Leslie M Smith
(312) 861-2000
[NTC ret]
Kirkland & Ellis
200 East Randolph Drive
Chicago, IL 60601

BRISTOL MYERS-SQUIBB COMPANY, INC
Defendant – Appellee

Max Rees Shulman
(212) 474-1000
[COR LD NTC ret]
825 Eighth Ave (Cravath, Swaine,)
New York, NY 10019
(212) 474-1754



*Appendix B*

John M Landis
(See above)
[COR NTC ret]
Phillip A Wittmann
FTS 504-581-3361
504-581-3200
[COR NTC ret]
Stone, Pigman, Walther,
Wittmann & Hutchinson
546 Carondelet Street
New Orleans, LA 70130

MEAD JOHNSON & CO
Defendant – Appellee

Max Rees Shulman
(See above)
[COR LD NTC ret]

John M Landis
(See above)
[COR NTC ret]
Phillip A Wittmann
(See above)
[COR NTC ret]

*Appendix B*

STATE OF LOUISIANA
Amicus Curiae

Jane Bishop Johnson
225-342-2754
6th Floor
[COR LD NTC gvt]
Louisiana Department of Justice
301 Main Street
One American Place
Baton Rouge, LA 70801

12/29/97 Private civil diversity case docketed. NOA filed by Appellant Robin Free, Appellant Renee Free. [97-31341]

12/29/97 Record on appeal filed. Pleadings: 4 vols. Exhibits: 1 box [97-31341]

1/6/98 Briefing notice issued. [97-31341] A/Pet's Brief due on 2/17/98 for Renee Free, for Robin Free.

1/7/98 Appearance form filed by Phillip A Wittmann for Appellee Mead Johnson & Co, Appellee Bristol Myers-Squibb, Max Rees Shulman for Appellee Mead Johnson & Co, Appellee Bristol Myers-Squibb. [97-31341]

1/9/98 Appearance form filed by Patrick W Pendley for Appellant Renee Free, Appellant Robin Free. [97-31341]



*Appendix B*

1/13/98 Appearance form filed by Matthew F Pawa for Appellant Renee Free, Appellant Robin Free, Daniel Adam Small for Appellant Renee Free, Appellant Robin Free. [97-31341]

1/14/98 Appearance form filed by Craig A Knot for Appellee Abbott Laboratories, Frank Brian Cicero for Appellee Abbott Laboratories. [97-31341]

2/5/98 Appearance form filed by William R D'Armond for Appellee Abbott Laboratories. [97-31341]

2/16/98 Record on appeal returned to 5CCA. Volumes: 2 (vols 3 and 4) [97-31341]

2/19/98 Motion filed by Appellant Robin Free, Appellant Renee Free to certify question to State Supreme Court. [876418-1] Response/ Opposition due on 3/11/98. (SUBMIT TO SCREENING JUDGE AND PANEL) [97-31341]

2/20/98 The attorney Gordon Ball for Renee Free, attorney Don Barrett for Renee Free not participating in case. [97-31341]

2/20/98 Appellant's Brief filed by Appellant Robin Free, Appellant Renee Free. Copies of brief: 7 # of pages: 30. Date of COS: 2/17/98 Sufficient [Y/N]: Y. [97-31341] A/Pet's Brief

ddl satisfied. E/Res's Brief due on 3/23/98 for Mead Johnson & Co, for Bristol Myers-Squibb, for Abbott Laboratories.

2/20/98 Record excerpts filed by Appellant Robin Free, Appellant Renee Free # of copies: 4 Sufficient [Y/N]: N, excess pages. [97-31341] Sufficient Record Excerpts due on 3/13/98 for Renee Free, for Robin Free

2/20/98 The attorney Gordon Ball for Renee Free, attorney Don Barrett for Renee Free, attorney Howard J Sedran for Renee Free, attorney Daniel Elvin Gustafson for Renee Free, attorney Gordon Ball for Robin Free, attorney Don Barrett for Robin Free, attorney Howard J Sedran for Robin Free, attorney Daniel Elvin Gustafson for Robin Free not participating in case. [97-31341]

3/4/98 Motion filed by The State of Louisiana to file amicus brief on behalf of appellants Robin and Renee Free. [878753-1] Response/Opposition due on 3/13/98. [97-31341]

3/11/98 Response/opposition filed by Appellee Abbott Laboratories, Appellee Bristol Myers-Squibb, Appellee Mead Johnson & Co to motion to certify ques to St Sup Ct. [876418-1] by Appellant Robin Free, Renee Free [886793-1] [97-31341]



3/12/98 Motion filed by Appellant Robin Free, Appellant Renee Free to file record excerpts in excess of the page limitation. [889362-1] [97-31341]

3/16/98 CLERK Order filed granting unopposed motion of appellants to file rec.exc in excess pgs [889362-1] The clerk is granting your unopposed motion for the Court subject to possible reconsideration by the merit panel at a later date. (SEND MOTION, LETTER, AND EXCERPTS TO SCREENING JUDGE AND PANEL) Copies to all counsel. [97-31341]

3/16/98 Record Excerpts made sufficient by Appellant Robin Free, Appellant Renee Free [97-31341] Sufficient Record Excerpts ddl satisfied. (See Clerk's Order filed 3/16/98)

3/16/98 CLERK Order filed granting unopposed motion of State of Louisiana to file amicus brief in support of appellants Robin and Renee Free [878753-1] Copies to all counsel. [97-31341]

3/16/98 Amicus curiae brief filed by Amicus Curiae State of Louisiana in support of Appellants Robin and Renee Free. Copies of Brief: 8 # of pages: 9. Date of COS: 3/3/98 Sufficient [Y/N]: y. [97-31341] E/Res's Brief ddl updated to 4/15/98 for Mead Johnson & Co,

for Bristol Myers-Squibb, for Abbott Laboratories.

3/25/98 Appearance form filed by Jane Bishop Johnson for Amicus Curiae State of Louisiana. [97-31341]

4/16/98 Unopposed motion filed by Appellee Abbott Laboratories, Appellee Bristol Myers-Squibb, Appellee Mead Johnson & Co for leave to file brief out of time [916742-1] [97-31341]

4/16/98 Appellee's Brief filed by Appellee Abbott Laboratories, Appellee Bristol Myers-Squibb, Appellee Mead Johnson & Co. Copies of Brief: 7 # of pages: 38. Word count: 11,243 Date of COS: 4/16/98 Sufficient [Y/N]: N, proportional type too small. [97-31341] E/Res's Brief ddl satisfied. Reply Brief due on 4/30/98 for Renee Free, for Robin Free. Sufficient Brief due on 5/8/98 for Mead Johnson & Co, for Bristol Myers-Squibb, for Abbott Laboratories.

4/16/98 The attorney Douglas Dwight Broadwater for Mead Johnson & Co, attorney Douglas Dwight Broadwater for Bristol Myers-Squibb not participating in case. [97-31341]

4/17/98 CLERK Order filed granting unopposed appellees' motion to file brief out of time [916742-1] Copies to all counsel. [97-31341]



4/21/98 Extension granted by phone until: 5/8/98 to file appellant's reply brief for Appellant Robin Free, Appellant Renee Free. [97-31341]

4/22/98 Unopposed motion filed by Appellant Robin Free, Appellant Renee Free to extend time to file reply brief until 5/11/98 [932647-1] [97-31341]

4/27/98 Supplemental authorities (FRAP 28(j)) filed by Appellee Abbott Laboratories, Appellee Bristol Myers-Squibb, Appellee Mead Johnson & Co [922127-1]. [97-31341]

4/29/98 CLERK Order filed granting appellants' unopposed motion to extend time to file Reply Brief [932647-1] Reply Brief ddl updated to 5/11/98 for Renee Free, for Robin Free. Copies to all counsel. [97-31341]

4/30/98 Confirmation letter filed by Appellant Robin Free, Appellant Renee Free confirming an extension of time to and including 5/8/98 for filing brief. [97-31341] Reply Brief ddl updated to 5/8/98 for Renee Free, for Robin Free.

5/5/98 Brief made sufficient by Appellee Abbott Laboratories, Appellee Bristol Myers-Squibb, Appellee Mead Johnson & Co [97-31341] Sufficient Brief ddl satisfied.

*Appendix B*

| | |
|---|---|
| 5/14/98 | Reply brief filed by Appellant Robin Free, Appellant Renee Free. Copies of Brief: 7 # of pages: 27. Word count: 6933 Date of COS: 5/11/98 Sufficient [Y/N]: n needs grey covers, remove transparent covers. [97-31341] Reply Brief ddl satisfied. Sufficient Brief due on 5/26/98 for Renee Free, for Robin Free. |
| 5/14/98 | Brief filed in support of motion to certify questions to State Supreme Court [876418-1] by Appellant Robin Free, Renee Free Excess pgs[Y/N]?: n [939376-1] [97-31341] (Sub. to Scr. Judge and Panel) |
| 5/26/98 | Brief made sufficient by Appellant Robin Free, Appellant Renee Free [97-31341] Sufficient Brief ddl satisfied. |
| 6/2/98 | Appearance form filed by John M Landis for Appellee Mead Johnson & Co, Appellee Bristol Myers-Squibb. [97-31341] |
| 6/19/98 | Record on appeal returned to 5CCA. Volumes: 4 [97-31341] |
| 6/25/98 | COURT Order filed carrying with case appellants' motion to certify questions to State Supreme Court [876418-1] (EHJ/JES/CES) Copies to all counsel. [97-31341] |
| 8/6/98 | Case tentatively calendared for oral argument Week of: 10/05/98. [97-31341] |



*Appendix B*

| | |
|---|---|
| 8/27/98 | Case calendared for oral argument. [97-31341] |
| 9/14/98 | Supplemental authorities (FRAP 28(j)) filed by Appellant Robin Free, Appellant Renee Free [1059478-1]. [97-31341] |
| 10/2/98 | Supplemental authorities (FRAP 28(j)) filed by Appellant Robin Free, Appellant Renee Free [1073767-1]. [97-31341] |
| 10/5/98 | Oral argument heard. Case argued by Daniel Adam Small for Appellant Renee Free, Appellant Robin Free, Craig A Knot for Appellee Abbott Laboratories [97-31341] |
| 12/21/98 | Supplemental authorities (FRAP 28(j)) filed by Appellant Robin Free, Appellant Renee Free [1145718-1]. [97-31341] |
| 1/11/99 | Record on appeal returned to 5CCA. Volumes: 4 Exhibits: 1 box [97-31341] |
| 1/19/99 | Non-dispositive opinion filed certifying question to LA Supreme Court. [1204704-1] Published? y # of pages: 8 Issd in T form? n Type of non-disp.: S [97-31341] |
| 3/22/99 | Louisiana Supreme Court opinion/order filed denying certification. [1235377-1] [97-31341] |

*Appendix B*

| | |
|---|---|
| 6/3/99 | Opinion filed. If Published # of pages: 4 Issue Mandate due on 6/24/99. [97-31341] |
| 6/3/99 | COURT Order filed mooting in light of the opinion appellant's motion to certify questions to State Supreme Court [876418-1] (RGG,EHJ,HRD) Copies to counsel. [97-31341] |
| 6/3/99 | Judgment entered and filed. [97-31341] |
| 6/14/99 | Record on appeal filed. Exhibits: 1 box. [97-31341] |
| 6/29/99 | Mandate issued. Approved BOC Issued (Y/N)?: n [97-31341] Issue Mandate ddl satisfied. |
| 6/29/99 | Record on appeal returned to USDC. Exhibits: 2 boxes. [97-31341] |
| 9/8/99 | Supreme Court notice that petition for certiorari was filed on 09/01/99 by Appellant Robin Free, Appellant Renee Free Supct No.: 99-391 [97-31341] |
| 11/29/99 | Record on appeal returned to 5CCA. Volumes: 4 [97-31341] Case Management ddl satisfied. |
| 11/29/99 | Record on appeal returned to USDC. Volumes: 4. [97-31341] |



## APPENDIX C — PETITION DATED AND FILED OCTOBER 14, 1993

18TH JUDICIAL DISTRICT COURT
WEST BATON ROUGE PARISH
STATE OF LOUISIANA

ROBIN FREE AND RENEE FREE

VERSUS

ABBOTT LABORATORIES, INC.; BRISTOL-MYERS SQUIBB COMPANY; AND MEAD JOHNSON & COMPANY

NO: 25248 DIV: D

PETITION

The petition of ROBIN FREE and RENEE FREE, husband and wife, residents of and domiciled in West Baton Rouge Parish, Louisiana, appearing individually and on the behalf of all others similarly situated, respectfully represents:

1.

Made defendants herein are ABBOTT LABORATORIES, INC., a foreign corporation, with its principal place of business at Abbott Park, Illinois, authorized to do and doing business in the State of Louisiana, whose registered agent for service of process is C.T. Corporation Systems, 8550 United Plaza Boulevard, Baton Rouge, Louisiana 70809;

*Appendix C*

Defendant, BRISTOL-MYERS SQUIBB COMPANY is a foreign corporation, not authorized to do, but doing business in the State of Louisiana, with its principal place of business located in New York, New York, and who may be served pursuant to the provisions of L.R.S. 13:3201 et seq. (Louisiana Long Arm Statute);

and, defendant, MEAD JOHNSON & COMPANY, a foreign corporation, not authorized to do, but doing business in the State of Louisiana with its principal place of business located in Evansville, Indiana, and who my be served pursuant to the provisions of L.R.S. 13:3201 et seq. (Louisiana Long Arm Statute).

2.

The American Academy of Pediatrics (the "AAP"), not named as a defendant in this complaint, has participated as a co-conspirator in the violations alleged herein, and has performed acts and made statements in furtherance thereof. The AAP is a non-profit corporation with its headquarters in Elk Grove Village, Illinois, and with chapters throughout the United States.

3.

The defendants are justly and truly indebted unto the class of plaintiffs herein for such damages as may reasonably compensate each and every class member for his\her economic loss, including teble damages, together with attorney fees, legal interest from date of judicial demand until paid, but in a total amount not to exceed $20,000.00 per class



*Appendix C*

member and for all cost of this litigation for the following, to wit:

4.

This is a class action law suit filed under the provisions of La. C.C.P. article 591 et seq. on behalf of consumers of infant formula in the State of Louisiana who were injured as a result of defendants' combination, contract, understanding or agreement, express or implied, in violation of L.R.S. 51:122 et seq., R.C.C. art. 2315, and R.C.C. article 1953 et seq.

5.

Plaintiffs bring this action on their own behalf on and behalf of the following class:

> All consumers who reside in the State of Louisiana and who, at any time during the period of January 1, 1980 through December 31, 1992, purchased one or more of the defendants' brands of infant formula in the State of Louisiana.

6.

Plaintiffs are entitled to have this cause of action maintained as class action, pursuant to Louisiana Code of Civil Procedure, Article 591, et seq., for, inter alia, the following reasons:

*Appendix C*

A. The persons or entities constituting the class are so numerous that the individual joinder of all parties is impracticable;

B. The existing common character among rights sought to be enforced on behalf of the class among the class representatives and the unnamed members of the class;

C. The named plaintiffs are representatives of the class and members of the class that are so situated as to provide adequate representation for their named class members;

D. The great majority of the unnamed class members have no substantial interest in individually controlling the prosecution of their separate actions;

E. The common questions and issues of law and fact involved in this matter which predominate over questions affecting individual class members;

F. Any defenses of or theories of resistance or liabilities set forth by defendants would be applied to all plaintiffs presented by members of the class;

G. Prosecutions of separate actions by individual class members will create a serious risk of inconsistent or varying adjudications which may prejudicially affect the claims of other class members in subsequent litigation;



*Appendix C*

H. The prosecution of separate actions by the individual class members possesses the risk that separate adjudications respecting the individual claimants would not be entirely dispositive of the interest of class members not parties to the litigation or would otherwise substantially impair or impede the ability of the class members to protect their interests;

I. The class action is a superior procedural vehicle for this litigation because the primary objectives of the class action, economies of time, effort and expense, will be achieved; and,

J. The vehicle of the class action may be more easily managed than some other procedural vehicle, considering the opportunity to afford reasonable notice of significant phases of the litigation to class members.

7.

Each of the named plaintiffs' individual damages are not substantially different from the damages of the other members of their representative class. The petitioners will fully and adequately protect the interests of the other members of the class, who are too numerous to be named individually and to individually appear in these proceedings.

8.

There is a well-defined community of interest in the questions of law and fact affecting the parties to be

*Appendix C*

represented; the claims of the representative parties are typical of the claims applicable to the entire class; the questions of law and fact applicable to the entire class predominate over questions which may affect individual members, including, inter alia, the following:

A. Whether the defendants engaged in the combination, contract, understanding or agreement among themselves, expressed or implied, to fix, raise, maintain or stabilize prices of infant formula sold in the United States, including the State of Louisiana;

B. Whether the defendants took steps actively to conceal the combination, contract, understanding or agreement from plaintiffs and the other members of the class;

C. Whether the defendants' conduct caused retail prices of infant formula sold in the State of Louisiana to be fixed, raised, maintained or stabilized at artificially high or non-competitive levels; and,

D. Whether the plaintiffs and the other members of the class were injured by defendants' conduct and, if so, the appropriate class wide measure of damages.

These and other questions of law and fact common to the class predominate over any questions affecting only individual members of the class.



*Appendix C*

9.

The plaintiffs are asserting claims that are typical of the claims of the entire class and plaintiffs will fairly and adequately represent and protect the interest of the class in that they have no interest antagonistic to those in the class.

10.

The plaintiffs have retained counsel who are competent and experienced in the prosecution of this type of litigation.

11.

The plaintiffs and the members of the class have all suffered irreparable harm and damage as a result of the defendants' unlawful and wrongful acts. Absent a class action, defendants will likely retain millions of dollars accrued as a result of their wrongdoing to the detriment of consumers of their infant formula products.

12.

Because of the size of the individual class members' claim, few, if any, class members could afford to seek legal action for the wrongs complained of herein. Absent a class action, the class members will continue to suffer losses and allow these violations of law to proceed without remedy and allow defendants to retain the proceeds of their ill-gotten gain.

*Appendix C*

13.

Beginning in 1980 and continuing through 1992, the defendants and co-conspirators engaged in the continuing combination, contract, understanding and agreement, expressed or implied, in unreasonable restraint of trade in violation of L.R.S. 51:122 et seq., R.C.C. art. 2315, and R.C.C. article 1953 et seq.

14.

The aforesaid combination, contract, understanding and agreement consisted of an agreement, understanding and concert of action among defendants, the substantial terms of which were to raise, fix, maintain and stabilize at artificially high levels the wholesale prices of infant formula sold in the United States, including the State of Louisiana.

15.

For the purpose of forming and effectuating the aforesaid combination, contract, understanding and agreement the defendants and co-conspirators did those things which they combined and conspired to do.

16.

The aforesaid combination, contract, understanding and agreement had the effect, among others, of causing retail prices of infant formula purchased by plaintiff and the other members of the class to be raised, fixed, maintained and stabilized at artificially high and non-competitive levels.



*Appendix C*

17.

Throughout the time period set forth herein, the defendants have fraudulently concealed their unlawful combination, contract, understanding and agreement from the plaintiff and the other members of the class.

18.

In order to fraudulently conceal their combination, contract, understanding and agreement from plaintiff and the other members of the class, defendants engaged, inter alia, in the following affirmative conduct:

A. Defendants secretly conducted activities in furtherance of their combination, contract, understanding and agreement.

B. Defendants communicated in furtherance of their combination, contract, understanding and agreement through means which they believed to be safe from detection and avoided means which they believed to be subject to detection, including avoiding references in documents to such combination, contract, understanding and agreement and limiting information concerning such combination, contract, understanding and agreement to a small number of defendants' key officials.

C. Defendants alternated leadership in setting infant formula prices and avoided in most instances exactly matching another's price increase.

D. Defendants imposed protective orders on documents and court files in other, related lawsuits against them.

19.

Therefore, the running of any statute of limitations has been suspended with respect to the claims alleged herein by virtue of the doctrine of contra non valentum agere nulla currit praescriptio in that (a) defendants through various devices and techniques of secrecy, described above, affirmatively and fraudulently concealed the existence of the combination, contract, understanding and agreement alleged herein; and (b) plaintiff and the other members of the class had no knowledge of such unlawful conduct or of facts which might have led to the discovery thereof with the exercise of due diligence until some time shortly before filing this petition.

20.

As a direct and proximate result of the unlawful conduct of the defendants alleged hereinabove, plaintiff and the members of the class paid more for infant formula than they would have paid in the absence of the illegal combination, contract, understanding and agreement and, as a result, have been injured and suffered damages in an amount presently undetermined.

21.

The aforesaid actions of the defendants constitute a disregard for the rights of the plaintiffs and the members of



the class, requiring an award of all damages which will reasonably compensate each member of the class for his losses and damages including treble damages under L.R.S. 51:137 and reasonable attorneys' fees, but, in a total amount not to exceed $20,000.00 per class member.

WHEREFORE, plaintiffs pray on their behalf individually, and on behalf of all others similarly situated that the defendants be cited to appear and answer this petition, and that after due proceedings had, that there be judgment entered herein as follows:

I. That an Order be entered herein and certifying this action and maintaining this action as a class action;

II. That the plaintiffs and class members herein be awarded compensatory damages in an amount to be proven at trial trebled according to L.R.S. 51:137, for each named plaintiff and for each member of the plaintiff class;

III. For such reasonable attorney fees as may be authorized by the law of the State of Louisiana, but plaintiffs hereby specifically limit each plaintiff's and each class member's total claim to an amount not exceeding $20,000.00;

IV. For all cost of this suit and for legal interest thereon from the date of the loss to each plaintiff and/or class member, or alternatively, from the date of judicial demand; and,

V. For all just and equitable relief.

*Appendix C*

BY ATTORNEYS:

s/ Patrick W. Pendley
PATRICK W. PENDLEY
A PROFESSIONAL LAW
CORPORATION
POST OFFICE DRAWER 71
PLAQUEMINE, LOUISIANA
70765-0071
TELEPHONE: (504) 687-6396
TELECOPIER: (504) 687-6398
BAR ASSOCIATION #10421

DON BARRET (MB #2063)
BARRETT LAW OFFICES
404 COURT SQUARE NORTH
POST OFFICE BOX 631
LEXINGTON, MISSISSIPPI
39095-0631
TELEPHONE: (601) 834-2376
TELECOPIER: (601) 834-2409

GORDON BALL
LAW OFFICES OF GORDON BALL
NATIONSBANK CENTER
550 MAIN AVENUE
SUITE 750
KNOXVILLE, TENNESSEE 37902
TELEPHONE: (615) 525-7028
TELECOPIER: (615) 525-4679



*Appendix C*

MICHAEL D. HAUSFELD
DANIEL A. SMALL
COHEN, MILSTEIN, HAUSFELD
& TOLL
1401 NEW YORK AVENUE, N.W.
SUITE 600
WASHINGTON, D.C. 20005
TELEPHONE: (202) 628-3500
TELECOPIER: (202) 628-3473

## APPENDIX D — ANSWER OF ABBOTT LABORATORIES DATED APRIL 25, 1995

**UNITED STATES DISTRICT COURT**
**MIDDLE DISTRICT OF LOUISIANA**

**CIVIL ACTION NO. 93-971**

**JUDGE PARKER**
**MAGISTRATE JUDGE RIEDLINGER**

**ROBIN FREE AND RENEE FREE**

**VS.**

**ABBOTT LABORATORIES, BRISTOL-MYERS SQUIBB CO. AND MEAD JOHNSON & CO.**

### ANSWER OF ABBOTT LABORATORIES

In answer to plaintiffs' complaint, Abbott Laboratories ("Abbott"), by and through its attorneys, states as follows:

1.

### FIRST DEFENSE

The Complaint fails to state a claim upon which relief can be granted against Abbott.



*Appendix D*

2.

### SECOND DEFENSE

Neither plaintiff nor any member of a purported class has suffered any compensable injury or damage as a result of Abbott's conduct.

3.

### THIRD DEFENSE

Plaintiffs' claims are barred, in whole or in part, to the extent they seek damages duplicative of damages sought or to be sought in other actions.

4.

### FOURTH DEFENSE

Plaintiffs' claims are barred, in whole or in part, because any conduct engaged in by Abbott has been reasonable and justified by legitimate business and economic interests.

5.

### FIFTH DEFENSE

Plaintiffs' claims are barred, in whole or in part, by the applicable statutes of limitation.

6.

**SIXTH DEFENSE**

Plaintiffs' claims are barred, in whole or in part, by the doctrine of laches.

7.

**SEVENTH DEFENSE**

Plaintiffs lack standing to assert each and every claim set forth in the Complaint.

8.

**EIGHTH DEFENSE**

Plaintiffs' claims are barred in whole or in part to the extent any recovery by plaintiff would be duplicative of recovery by other plaintiffs in other lawsuits.

9.

Abbott reserves the right to add to or amend this answer and affirmative defenses at any time prior to the trial of this matter.

Pleading further, if such be necessary, and in the alternative throughout, Abbott says:





10.

Abbott admits that it is a corporation headquartered in Illinois, that it is authorized to and does in fact conduct business in Louisiana, and that C.T. Corporation Systems is its registered agent for service of process in Louisiana.

Abbott, upon information and belief, states that Bristol-Myers and Mead Johnson conduct business in Louisiana. Abbott is without sufficient knowledge to admit or deny the remaining allegations of the complaint concerning Bristol-Myers and Mead Johnson. Abbott denies the remaining allegations of paragraph 1.

11.

Abbott, upon information and belief, states that the American Academy of Pediatrics is a non-profit corporation with its headquarters in Elk Grove Village, Illinois. Abbott denies the remaining allegations of paragraph 2 of the complaint.

12.

Abbott denies the allegations of paragraph 3 of the complaint.

13.

Abbott admits that plaintiffs purport to bring this action as a class action for violations of Louisiana law but denies that this action may properly be brought as a class action

and denies that Abbott has violated any law. Abbott further denies that plaintiffs or any purported class member has suffered any injury at all and denies the remaining allegations of paragraph 4.

14.

Abbott admits that paragraph 5 purports to define a class but denies that this action may properly be brought as a class action.

15.

Abbott denies the this action may properly be brought as a class action allegations and therefore denies the allegations of paragraph 6 as a whole and the allegations of each sub-part of paragraph 6.

16.

Abbott denies the allegations of paragraph 7.

17.

Abbott denies the allegations of paragraph 8 taken as a whole and each of the sub-parts of paragraph 8.

18.

Abbott denies the allegations of paragraph 9.





19.

Abbott is without sufficient knowledge to admit or deny the allegations of paragraph 10.

20.

Abbott denies the allegations of paragraph 11.

21.

Abbott is without sufficient knowledge to admit or deny whether members of the purported class could afford to seek legal action with regard to the allegations of the complaint. Abbott denies that this action may properly be maintained as a class action, denies that the plaintiffs or purported class members have suffered any injury, denies that it has violated any lay, and denies that any of its "gains" are "ill-gotten." Abbot denies the remaining allegations of paragraph 12.

22.

Abbott denies the allegations of paragraph 13.

23.

Abbott denies the allegations of paragraph 14.

24.

Abbott denies the allegations of paragraph 15.

*Appendix D*

25.

Abbott denies the allegations of paragraph 16.

26.

Abbott denies the allegations of paragraph 17.

27.

Abbott denies the allegations of paragraph 18 taken as a whole and denies each of paragraph 18's sub-parts.

28.

Abbott denies the allegations of paragraph 19.

29.

Abbott denies the allegations of paragraph 20.

30.

Abbott denies the allegations of paragraph 21.

31.

Abbott denies the allegations stated in plaintiffs' unnumbered "WHEREFORE" clause and states that plaintiffs are not entitled to any relief at all.



*Appendix D*

WHEREFORE, defendant Abbott Laboratories denies that the plaintiff is entitled to any relief whatsoever and respectfully requests that the Court:

a. enter judgment in favor of defendant Abbott Laboratories, dismissing the complaint with prejudice and on the merits;

b. award defendant Abbott Laboratories its costs, disbursements, and attorney fees, as may be allowed by law; and

c. grant such further relief as the Court deems appropriate.

Dated: April 25, 1995

Respectfully Submitted,

s/ William R. D'Armond
William R. D'Armond, T.A., 4552
KEAN, MILLER, HAWTHORNE,
D'ARMOND, McCOWAN
& JARMAN
22nd Floor, One American Place
Baton Rouge, Louisiana 70821
(504) 387-0999
Attorney for Abbott Laboratories

*Appendix D*

OF COUNSEL:

James P. Dore
BORRON, DELAHAYE, EDWARDS & DORE
613 Meriam Street
Plaquemine, Louisiana 70764
(504) 687-3571

Frank Cicero, Jr., P.C.
J. Andrew Langan
KIRKLAND & ELLIS
200 East Randolph Drive
Chicago, Illinois 60601
(312) 861-2000

Mark E. Barmak
Catherine A. Sazdanoff
Laura J. Schumacher
ABBOTT LABORATORIES
One Abbott Park Road
Abbott Park, Illinois 60064-3500
(708) 937-6100



## APPENDIX E — ANSWER OF DEFENDANTS BRISTOL-MYERS SQUIBB COMPANY AND MEAD JOHNSON & COMPANY DATED APRIL 26, 1995

UNITED STATES DISTRICT COURT
MIDDLE DISTRICT OF LOUISIANA

Civil Action

No. 93-971

Div. A-M1

JUDGE PARKER
MAGISTRATE RIEDLINGER

ROBIN FREE, RENEE FREE,

Plaintiffs,

– against –

ABBOTT LABORATORIES, BRISTOL-MYERS SQUIBB COMPANY, MEAD JOHNSON & COMPANY,

Defendants.

### ANSWER OF DEFENDANTS BRISTOL-MYERS SQUIBB COMPANY AND MEAD JOHNSON & COMPANY

COME NOW defendants Bristol-Myers Squibb Company ("Bristol-Myers") and Mead Johnson & Company ("Mead Johnson"), severing themselves from their

co-defendant, and appearing for themselves alone, to answer the petition of plaintiffs Robin and Renee Free (the "Petition") and admit, deny and allege as follows:

1.

With respect to paragraph 1 of the Petition, admit, upon information and belief, that defendant Abbott Laboratories ("Abbott") is an Illinois corporation with its principal place of business in Abbott Park, Illinois; state that they are without knowledge or information sufficient to form a belief as to whether Abbott is authorized to do business in the State of Louisiana; state that they are without knowledge or information sufficient to form a belief as to the identity of Abbott's registered agent for service of process in Louisiana, if any; admit that Bristol-Myers is a foreign corporation with its principal place of business in New York, New York; admit that Bristol-Myers is not authorized to do business in Louisiana; admit that Bristol-Myers' products are sold and distributed in Louisiana; admit that Mead Johnson & Company is a foreign corporation with its principal place of business in Evansville, Indiana; admit that Mead Johnson is not authorized to do business in Louisiana; admit that Mead Johnson's products are sold and distributed in Louisiana; and, except as expressly so stated and admitted, deny each and every remaining allegation contained therein.

2.

With respect to paragraph 2 of the Petition, admit that plaintiffs purport to refer to the American Academy of Pediatrics as the "AAP"; admit, upon information and belief,



that the American Academy of Pediatrics ("AAP") is a non-profit corporation with its headquarters in Elk Grove Village, Illinois, and with chapters elsewhere; admit that the AAP is not named as a defendant in the Petition; and, except as expressly so admitted, deny each and every remaining allegation contained therein.

3.

With respect to paragraph 3 of the Petition, deny that plaintiffs or any member of the purported class they seek to represent have suffered any damages as a result of defendants' conduct and deny each and every remaining allegation contained therein.

4.

With respect to paragraph 4 of the Petition, admit that plaintiffs purport to bring this action on behalf of themselves and an alleged class as defined in paragraph 4 of the Petition pursuant to La. Code Civ. Pro. article 591 *et seq.*; deny that this action may properly be maintained as a class action; deny that plaintiffs or any member of the purported class they seek to represent have suffered any damages as a result of defendants' conduct and deny each and every remaining allegation contained therein.

5.

With respect to paragraph 5 of the Petition, deny that this action may properly be maintained as a class action and deny each and every remaining allegation contained therein.

*Appendix E*

6.

With respect to paragraph 6 of the Petition, state that they are without knowledge or information sufficient to form a belief as to the truth of the allegation regarding plaintiffs' knowledge of the exact size of the class; deny that this action may properly be maintained as a class action; state that each and every remaining allegation contained in paragraph 6 is a conclusion of law for which no response is required; nonetheless, except as expressly so stated, deny each and every remaining allegation contained therein.

7.

With respect to paragraph 7 of the Petition, deny that this action may properly be maintained as a class action; state that each and every allegation contained in paragraph 7 is a conclusion of law for which no response is required; nonetheless, deny each and every allegation contained therein.

8.

With respect to paragraph 8 of the Petition, deny that this action may properly be maintained as a class action; state that each and every allegation contained in paragraph 8 is a conclusion of law for which no response is required; nonetheless, deny each and every allegation contained therein.



*Appendix E*

9.

With respect to paragraph 9 of the Petition, deny that this action may properly be maintained as a class action; state that each and every allegation contained in paragraph 9 is a conclusion of law for which no response is required; nonetheless, deny each and every allegation contained therein.

10.

With respect to paragraph 10 of the Petition, deny that this action may properly be maintained as a class action; and state that they are without knowledge or information sufficient to form a belief as to the allegations that plaintiffs have retained competent counsel experienced in the prosecution of this type of litigation.

11.

With respect to paragraph 11 of the Petition, deny that plaintiffs or any member of the purported class they seek to represent have suffered any damages as a result of defendants' conduct; deny that this action may properly be maintained as a class action; and deny each and every remaining allegation contained therein.

12.

With respect to paragraph 12 of the Petition, deny that plaintiffs or any member of the purported class they seek to represent have suffered any damages as a result of

*Appendix E*

defendants' conduct; deny that this action may properly be maintained as a class action; and deny each and every remaining allegation contained therein.

13.

With respect to paragraph 13 of the Petition, deny each and every allegation contained therein.

14.

With respect to paragraph 14 of the Petition, deny each and every allegation contained therein.

15.

With respect to paragraph 15 of the Petition, deny each and every allegation contained therein.

16.

With respect to paragraph 16 of the Petition, deny each and every allegation contained therein.

17.

With respect to paragraph 17 of the Petition, deny each and every allegation contained therein.

18.

With respect to paragraph 18 of the Petition, deny each and every allegation contained therein.



*Appendix E*

19.

With respect to paragraph 19 of the Petition, state that each and every allegation contained in paragraph 19 is a conclusion of law for which no response is required; nonetheless, deny each and every allegation contained therein.

20.

With respect to paragraph 20 of the Petition, deny each and every allegation contained therein.

21.

With respect to paragraph 21 of the Petition, deny that plaintiffs or any member of the purported class they seek to represent have suffered any damages as a result of defendants' conduct and deny each and every remaining allegation contained therein.

AFFIRMATIVE DEFENSES

22.

The Petition fails to state a claim upon which relief can be granted against these defendants.

23.

This action is not properly maintainable as a class action.

*Appendix E*

24.

Plaintiffs are not proper class representatives.

25.

The damages sought by plaintiffs on behalf of the purported class cannot be recovered without specific proof by each alleged class member that he or she has been injured.

26.

There has been no class-wide injury or damage.

27.

Neither plaintiffs nor any purported class member have suffered any compensable injury or damage as a result of defendants' conduct.

28.

Plaintiffs' claims are barred, in whole or in part, to the extent they seek damages duplicative of damages sought or to be sought in other actions.

29.

Plaintiffs' claims are barred, in whole or in part, because any conduct engaged in by defendants has been reasonable and justified by legitimate business and economic interests.



*Appendix E*

30.

Plaintiffs' claims are barred, in whole or in part, by prescription, the applicable statutes of limitation, or by the doctrine of laches.

31.

The Petition fails to plead fraudulent concealment or contra non valentum with the requisite particularity.

32.

With respect to paragraph 18(d) of the Petition, the actions alleged are protected by the First Amendment of the U.S. Constitution and the *Noerr-Pennington* doctrine.

33.

Plaintiffs lack standing to assert each and every claim set forth in the Petition.

34.

Because of the corporate relationship between defendants Bristol-Myers and Mead Johnson, no agreement between them can constitute an unlawful conspiracy.

35.

To the extent that any recovery by plaintiffs or by members of the purported class would be duplicative of

recovery by other plaintiffs in other lawsuits, subjecting Bristol-Myers and Mead Johnson to the possibility of multiple recovery, such recovery is barred by the Eighth Amendment to the U.S. Constitution, made applicable to the States through the Fourteenth Amendment, and also violates Bristol-Myers' and Mead Johnson's right to substantive and procedural due process.

36.

The injunction sought by plaintiffs is moot.

37.

Bristol-Myers and Mead Johnson reserve the right to add to or amend this answer and affirmative defenses at any time prior to the trial of this matter.

WHEREFORE, Bristol-Myers Squibb Company and Mead Johnson & Company demand judgment dismissing the Petition as against them and awarding them costs and expenses of this action, including reasonable attorneys' fees, and such other relief as this Court deems just and proper.



Respectfully,

by s/ Edwin H. Neill III
Phillip A. Wittmann, T.A. 13625
John M. Landis, 7958
Edwin H. Neill III, 20985
STONE, PIGMAN, WALTHER,
WITTMANN & HUTCHINSON,
546 Carondelet Street
New Orleans, LA 70120-3588
Telephone: (504) 581-3200

Attorneys for Defendants
Bristol-Myers Squibb Company
and Mead Johnson & Company

OF COUNSEL:

Douglas D. Broadwater
Max R. Shulman
CRAVATH, SWAINE & MOORE
Worldwide Plaza
825 Eighth Avenue
New York, NY 10019
Tel: (212) 474-1000